

TENTATIVE RULING

Ayman K. Adeeb, DDS vs. Ronald Gene Shikashio (26CV002301)

Defendant's Demurrer to Plaintiff's Complaint:

Defendant demurs to the second and third causes of action in Plaintiff's Complaint (which are negligence per se and negligent infliction of emotional distress, respectively) on the basis that these causes of action do not state facts sufficient to constitute a cause of action under California Code of Civil Procedure section 430.010(e.). Plaintiff filed no opposition.

The demurrer is **SUSTAINED** as to both the second and third causes of action without leave to amend.

As to the second cause of action for negligence per se, "[t]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence." (*Das v. Bank of America, N.A.* (2010) 186 Cal.App.4th 727, 737-738.) Accordingly, the demurrer is sustained.

As to the third cause of action for negligent infliction of emotional distress, this is not a separate cause of action but is a species of negligence and must be pleaded, if at all, within a properly alleged negligence cause of action satisfying duty, breach, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072). Accordingly, the demurrer is sustained.

Leave to amend is denied because the Plaintiff has already alleged a negligence claim in the first cause of action of the Complaint and there is no way that that the Plaintiff can plead around the defects in the second and third causes of action.

The parties are to appear at the hearing of the above motions set on August 28, 2026.